

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DUQUAN SCOTT,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
FREDRIC S. DAUGHTRY, Shield No. 25363,
SERGEANT ERIC DARGENIO, POLICE OFFICER
NICHOLAS ALTIZERMERCADO, SERGEANT TRACY
RAGSDALE, DETECTIVE SADDLER, POLICE
OFFICER DOUGLAS ACKER, SERGEANT
STEWARTPERRY, SERGEANT FERNANDEZ,
LIEUTENANT RAYMOND COTTON, DETECTIVE
SPAETH, DETECTIVE YATCHENYA, DETECTIVE
YOUNG, and POLICE OFFICERS JOHN DOES #1-4
(names and number of whom are unknown at present), and
other unidentified members of the New York City Police
Department,

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to Answer the Verified Complaint in this action, and to serve a copy of your Verified Answer, or, if the Verified Complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 19, 2015

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: THE CITY OF NEW YORK, New York City Law Department, Office of the Corporation Counsel, 100 Church Street, New York, New York 10007
POLICE OFFICER FREDRIC S. DAUGHTRY, Shield No. 25363, 63rd Precinct Detective Squad, 1844 Brooklyn Avenue, Brooklyn, New York 11210-4240
SERGEANT ERIC DARGENIO, 63rd Precinct Detective Squad, 1844 Brooklyn Avenue, Brooklyn, New York 11210-4240
POLICE OFFICER NICHOLAS ALTIZERMERCADO, 63rd Precinct, 1844 Brooklyn Avenue, Brooklyn, New York 11210-4240
SERGEANT TRACY RAGSDALE, 63rd Precinct, 1844 Brooklyn Avenue, Brooklyn, New York 11210-4240
DETECTIVE SADDLER, Brooklyn South Night Watch, 2820 Snyder Avenue , Brooklyn, New York 11226
POLICE OFFICER DOUGLAS ACKER, 63rd Precinct, 1844 Brooklyn Avenue, Brooklyn, New York 11210-4240
SERGEANT STEWARTPERRY, 63rd Precinct, 1844 Brooklyn Avenue, Brooklyn, New York 11210-4240
SERGEANT FERNANDEZ, Housing Bureau Police Service Area 1, 2860 West 23rd Street, Brooklyn, New York, 11224
LIEUTENANT RAYMOND COTTON, 63rd Precinct Detective Squad, 1844 Brooklyn Avenue, Brooklyn, New York 11210-4240
DETECTIVE SPAETH, 63rd Precinct Detective Squad, 1844 Brooklyn Avenue, Brooklyn, New York 11210-4240
DETECTIVE YATCHENYA, 63rd Precinct Detective Squad, 1844 Brooklyn Avenue, Brooklyn, New York 11210-4240
DETECTIVE YOUNG, 63rd Precinct Detective Squad, 1844 Brooklyn Avenue, Brooklyn, New York 11210-4240

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(names and number of whom are unknown at present), and
other unidentified members of the New York City Police
Department,

Defendants..

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff DUQUAN SCOTT, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of
defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections
1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to
the United States Constitution, and the common law and the laws of the State of New York. On
or about September 19, 2012, at approximately 2:00 p.m.. the individually named defendant New
York City Police Officers arrived at plaintiff's home located at 5903 Glenwood Road, Apt. 5D,
Brooklyn, New York and proceeded to unlawfully search, unlawfully seize, falsely arrest and
imprison plaintiff Duquan Scott. Thereafter, the defendant police officers maliciously prosecuted
plaintiff by initiating and continuing a criminal prosecution against plaintiff without probable
cause in Kings County Supreme Court. Furthermore, the defendant police officers caused

plaintiff to suffer damages caused by the officers malicious abuse of process when abused process when process was initiated by defendants against plaintiff in the underlying criminal case. Plaintiff was denied the right to due process and the right to a fair trial in violation of the Fifth and Fourteenth Amendments to the United States Constitution when the defendant police officers provided the Kings County District Attorneys Office with falsified, incomplete and misleading evidence when the defendants provided the DA's Office with the facts that gave rise to the arrest and prosecution of plaintiff. Throughout the entire course of his unlawful detention, plaintiff was detained in holding pens and jail cells with individuals who has committed violent crimes, many of whom were gang members, and as a result plaintiff was attacked and beat up by other prisoners several times during the unlawful detention, causing plaintiff to suffer painful physical injuries to his body. As a direct result of the false arrest and malicious prosecution, plaintiff was detained for approximately 9 days. On Riker's Island before he was able to post bond and was released from the custody of the Department of Correction on or about September 28, 2012. Plaintiff was forced to appear in court to address the false felony and misdemeanor criminal charges brought against him by the defendant police officers, on approximately 25 occasions, during a 1 year and 9 mont malicious prosecution before (a) all felony charges were dismissed on November 13, 2013, before trial ,after the DA's Office affirmatively moved for the dismissal of the felony charges; and (b) all remaining misdemeanor charges were dismissed and sealed when a jury acquitted plaintiff of the remaining charges on February 10, 2014, after plaintiff was forced to sit through a four day trial wherein he was accused of committing crimes he did not commit. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully questioned, searched, confined, falsely arrested and imprisoned, maliciously prosecuted, subjected plaintiff to abuse of process, denied plaintiff the right to a fair trial and to the right to due process in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff DUQUAN SCOTT is a resident of the state of New York.
3. POLICE OFFICER FREDRIC S. DAUGHTRY, Shield No. 25363, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. POLICE OFFICER FREDRIC S. DAUGHTRY, Shield No. 25363, is and was at all times relevant herein, assigned to the 63rd Precinct Detective Squad.
5. POLICE OFFICER FREDRIC S. DAUGHTRY, Shield No. 25363, is being sued in his individual and official capacity.
6. SERGEANT ERIC DARGENIO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. SERGEANT ERIC DARGENIO, is and was at all times relevant herein, assigned to the 63rd Precinct Detective Squad.

8. SERGEANT ERIC DARGENIO, is being sued in his individual and official capacity.

9. POLICE OFFICER NICHOLAS ALTIZERMERCADO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. POLICE OFFICER NICHOLAS ALTIZERMERCADO, is and was at all times relevant herein, assigned to the 63rd Precinct.

11. POLICE OFFICER NICHOLAS ALTIZERMERCADO, is being sued in his individual and official capacity.

12. SERGEANT TRACY RAGSDALE, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. SERGEANT TRACY RAGSDALE, is and was at all times relevant herein, assigned to the 63rd Precinct.

14. SERGEANT TRACY RAGSDALE, is being sued in his individual and official capacity.

15. DETECTIVE SADDLER, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. DETECTIVE SADDLER, is and was at all times relevant herein, assigned to Brooklyn South Night Watch.

17. DETECTIVE SADDLER, is being sued in his individual and official capacity.

18. POLICE OFFICER DOUGLAS ACKER, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. POLICE OFFICER DOUGLAS ACKER, is and was at all times relevant herein, assigned to the 63rd Precinct.

20. POLICE OFFICER DOUGLAS ACKER, is being sued in his individual and official capacity.

21. SERGEANT STEWARTPERRY, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

22. SERGEANT STEWARTPERRY, is and was at all times relevant herein, assigned to the 63rd Precinct.

23. SERGEANT STEWARTPERRY, is being sued in his individual and official capacity.

24. SERGEANT FERNANDEZ, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

25. SERGEANT FERNANDEZ, is and was at all times relevant herein, assigned to the Housing Bureau Police Service Area 1.

26. SERGEANT FERNANDEZ, is being sued in his individual and official capacity.

27. LIEUTENANT RAYMOND COTTON, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

28. LIEUTENANT RAYMOND COTTON, is and was at all times relevant herein, assigned to the 63rd Precinct Detective Squad.

29. LIEUTENANT RAYMOND COTTON, is being sued in his individual and official capacity.

30. DETECTIVE SPAETH, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

31. DETECTIVE SPAETH, is and was at all times relevant herein, assigned to the 63rd Precinct Detective Squad.

32. DETECTIVE SPAETH, is being sued in his individual and official capacity.

33. DETECTIVE YATCHENYA, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

34. DETECTIVE YATCHENYA, is and was at all times relevant herein, assigned to the 63rd Precinct Detective Squad.

35. DETECTIVE YATCHENYA, is being sued in his individual and official capacity.

36. DETECTIVE YOUNG, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

37. DETECTIVE YOUNG, is and was at all times relevant herein, assigned to the 63rd Precinct Detective Squad.

38. DETECTIVE YOUNG, is being sued in his individual and official capacity.

39. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

40. Police Officers John Does #1-4 are being sued in their individual and official capacities.

41. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

42. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

43. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claims against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

44. The City of New York conducted a hearing pursuant to General Municipal Law 50-H on May 20, 2014.

45. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

46. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

47. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

48. By way of background, on or about August 13, 2012, in the evening hours, plaintiff's mother, Patricia Scott, and a number of her neighbors lawfully organized a summer BBQ in the courtyard of their apartment complex in the vicinity of 5903 Glenwood Road, Brooklyn, New York.

49. Approximately 30 people attended the BBQ, where they enjoyed good food and company.

50. Plaintiff Duquan Scott was one of the individuals that attended the barbeque.

51. At approximately 9:00 p.m., an individual named Shilevia Shaw that lived in the apartment complex, approached Patricia Scott in an aggressive manner and immediately began screaming at Ms. Scott in a boisterous manner.

52. Ms. Shaw appeared extremely intoxicated, was not speaking in a coherent manner and her erratic behavior caused numerous neighbors at the barbeque, including Patricia Scott, to politely request that she calm down.

53. Plaintiff Duquan Scott was nearby socializing with several individuals, and he noticed Ms. Shaw screaming at his mother.

54. Plaintiff did not want the situation between the two women to escalate further; therefore he attempted to diffuse the situation by approaching the women and he calmly asked Ms. Shaw to calm down and to stop screaming.

55. Apparently, plaintiff's presence and/or suggestion enraged Ms. Shaw, who proceeded to verbally lash out at Mr. Scott. Fortunately, however, after the outburst Ms. Shaw relented and eventually walked away.

56. The BBQ continued throughout the evening without further incident.

57. Plaintiff Duquan Scott left the barbeque long before it ended because he was tired and wanted to go to sleep for the night. Plaintiff went home and was in his bed before midnight.

58. Several people attending the barbeque remained outside in the courtyard of their apartment complex in the vicinity of 5806 Farragut Road, lawfully socializing until approximately 2:00 a.m. on August 14, 2012, when a gunshot was reportedly fired into the air, by an unidentified individual, without causing injury to any people.

59. Plaintiff Duquan Scott was inside of his apartment sleeping when the gunshot was reportedly fired, into the air, and he did not witness what happened.

60. A witness to the alleged gunshot called 911 to report the incident at 2:11 a.m. on August 14, 2012.

61. The 911 caller who had just witnessed an individual fire the gun into the air described the perpetrator as a "male black wearing a white shirt and Hawaiian shorts, particularly distinctive clothing and attire.

62. Furthermore, it is undisputed and documented by the defendant police officers in their paperwork that the clothing that plaintiff was wearing at the barbeque that evening, as described by Ms. Shaw, was not similar to the description of the clothing worn by the perpetrator

in any respect. It is undisputed and documented by the defendants that at the time of the alleged shooting plaintiff was wearing a black tank top/ T-shirt, and grey jogging sweatpants.

63. The defendant police officers responded to the location of the alleged shooting shortly after it was reported to 911 and canvassed the area for the suspected perpetrator wearing a white shirt and Hawaiian shorts.

64. However, the defendant NYPD officers were unable to locate an/or apprehend the perpetrator.

65. Therefore, the defendant police officers interviewed and took statements from all individuals who were still present in the area, hoping to gather additional information about the perpetrator from anyone still present that witnessed the shooting.

66. Upon information and belief, Shilevia Shaw was still physically present in the vicinity of where the barbeque was located, but she appeared extremely intoxicated at that point, could not speak coherently, was screaming at pedestrians in a loud, confrontational and belligerent manner, and could barely stand on two feet without falling over due to her apparent intoxication.

67. Despite Ms. Shaw's obvious inebriated condition, the defendant police officers engaged her to question her about whether she could provide them any information about the alleged gunshots or the perpetrator who allegedly fired the gun.

68. The officers that engaged Ms. Shaw reportedly had to spend an extended period of time explaining to Ms. Shaw what they were trying to question her about, and it is unclear whether Ms. Shaw even knew there were gunshots allegedly fired in the vicinity of where she was located until after the defendant police officers explained several times that they were investigating reported gunshots fired and wanted to know whether she could provide them with a description of or the identity of the perpetrator who allegedly fired the gun.

69. In response to the officers questions, Ms. Shaw described the verbal argument she had with plaintiff's mother and indirectly with plaintiff, several hours earlier that evening, but Ms. Shaw falsely and misleadingly described the argument to the defendant officers as if it had just occurred minutes earlier and as if the verbal argument led directly into a gun being fired by claimant into the air.

70. Several individuals who remained in the vicinity of where Ms. Shaw was speaking to the defendant police officers had also witnessed Ms. Shaw screaming at plaintiff's mother and plaintiff several hours earlier that evening and advised the police officers taking the statement from Ms. Shaw that Ms. Shaw's allegations were untrue and that plaintiff was not present when the gun was fired and had gone home several hours before the shooting occurred.

71. Furthermore, the witnesses explained to the officers that Ms. Shaw had gotten into a verbal dispute with plaintiff's mother earlier that night and that the argument ended peacefully.

72. Another witness advised the officers that Ms. Shaw's sister was dating Mr. Scott's older brother and Mr. Scott's older brother had recently broken off the relationship. The witness further explained that Ms. Shaw and her family were extremely angry about how plaintiff's brother ended the relationship and were intent on getting revenge against members of the Scott family.

73. Additionally when the defendant police officers conducted a background check on Ms. Shaw they saw she had a criminal history involving crimes of dishonesty.

74. The police officers had every reason to doubt the veracity of Ms. Shaw's allegations and version of events. In fact, it appears that they did question Ms. Shaw's veracity, because the officers chose not to go to plaintiff's residence that night to search for the gun and/or to place plaintiff under arrest.

75. In fact a gun related to the alleged shooting was never recovered by the defendant police officers.

76. The defendant police officers chose not to immediately arrest Mr. Scott based upon Ms. Shaw's complaint.

77. Instead, the defendant officers conducted a lengthy investigation prior to arresting Mr. Scott.

78. There are several reasons why they considered Ms. Shaw unreliable.

79. The officers were told by witnesses that Ms. Shaw was extremely belligerent earlier that evening and continued drinking all evening, until the time she made the false statement to the police.

80. Additionally the defendant officers knew that the description of the shooter provided in the 911 caller and documented in the SPRINT Report was detailed and did not match the description of plaintiff provided in the report from Ms. Shaw.

81. The defendant police officers also knew that Ms. Shaw was an acquaintance of plaintiff's family, and were told an argument ensued between Ms. Shaw and Mr. Scott's mother earlier that evening.

82. The defendant police officers notably had zero physical evidence connecting plaintiff to the alleged crimes.

83. Indeed, plaintiff was never found in possession of a gun or bullets that matched the shell casing found at the scene of the crime.

84. Plaintiff does not have a criminal history or a history of violence and had no motive to commit the crimes alleged; whereas, Ms. Shaw had ample motive to fabricate allegations against Mr. Scott.

85. Instead of arresting plaintiff on the date of the underlying incident, the officers apparently discredited Ms. Shaw and continued their investigation and investigated other leads and witnesses.

86. The only reason the defendant officers arrested plaintiff on September 19, 2012, over a month after the incident was because the officers realized their other leads dried up but wanted to arrest someone for the gun allegation because supervisors at the NYPD view gun related arrests as high value arrests and they can lead to promotions and favorable assignments for officers in the future. Plaintiff was the only person left whom the officers could in any way link to the shooting. Therefore, they arrested him.

87. The defendant detectives in charge of the investigation of the shooting called Duquan Scott's home on September 19, 2012 and told his mother that they wanted to ask him some questions about a shooting.

88. Plaintiff had no reason whatsoever to fear calling the officers back, and he immediately returned their phone call, and said he was happy to answer their questions.

89. Shortly thereafter, the police officers arrived at plaintiff's apartment, asked him to step into the hallway, unlawfully searched plaintiff without probable cause, \ unlawfully handcuffed and falsely arrested plaintiff.

90. At no time did plaintiff commit a crime, nor did the defendant police officers have an objective factual basis to believe plaintiff committed a crime.

91. Plaintiff was unlawfully detained by defendants and was transported to the 63rd precinct without any knowledge of the crimes he was accused of committing or why the police officers arrested him.

92. Upon arriving at the 63rd precinct, plaintiff was placed in an interrogation room and unlawfully questioned without being notified of his Miranda Rights, for hours about the gunshots that allegedly were fired on August 14, 2012, and other crimes in the neighborhood. The defendant officers falsely told plaintiff that they had video footage of him shooting a gun.

93. Plaintiff was not read his Miranda rights and did not realize that he was the subject of their investigation until after he answered the officers' questions.

94. However, plaintiff could not provide the police officers with the information they were looking for because he was not present for the shooting on August 14, 2012.

95. Plaintiff was detained at the 63rd precinct in a holding cell for many hours. Eventually, plaintiff was transported to Brooklyn Central Booking and placed in a holding cell.

96. Plaintiff became extremely upset because the false arrest and malicious prosecution by the defendant police officers essentially destroyed plaintiff's life.

97. Plaintiff was arrested at the beginning of the school year and the detention and criminal prosecution had a tremendous impact on his ability to graduate high school and caused him to be expelled from school because of the amount of time he missed. Not graduating from high school has severely impacting the remainder of his life.

98. To make matters worse, other individuals who were in the holding cell at Central Booking with plaintiff threatened him and physically attacked him, until the officers removed plaintiff from the holding cell and placed into a different cell.

99. Plaintiff finally saw a judge on September 20, 2012, and bail was set at \$8,000. Claimant was unable to post bail, was remanded to Riker's Island, and detained for approximately **9 days**. Thereafter, bail was lowered to \$7,500 and plaintiff posted bond on his behalf on or about September 28, 2012.

100. Although plaintiff was released from Riker's Island, the malicious criminal prosecution continued for approximately **one year and nine months**, requiring claimant to appear in criminal court on approximately **25 separate occasions**, until before (a) all felony charges were dismissed on November 13, 2013, before trial, after the DA's Office affirmatively moved for the dismissal of the felony charges; and (b) all remaining misdemeanor charges were dismissed and sealed when a jury acquitted plaintiff of the remaining charges on February 10, 2014, after plaintiff was forced to sit through a four day trial wherein he was accused of committing crimes he did not commit.

101. Consistent with the facts regarding Ms. Shaw's unreliability discussed above, at trial Ms. Shaw was cross examined about several crimes of untruthfulness and deceit, for which she was previously convicted at the time of claimant's arrest, and the police officers knew about Ms. Shaw's arrest history and that her complaint in this cause was unreliable. Indeed, after the trial, the jury deliberated for *only 20 minutes* before acquitting claimant of all the charges that remained.

102. Because plaintiff did not graduate from high school and has had to contend with finding jobs that do not require a high school diploma and, in turn, also accept a lower salary than he may otherwise have been able to obtain.

103. The defendant police officers provided the Brooklyn District Attorney's Office with a detailed narrative about why the officers arrested plaintiff, and the description provided by the officers contained falsified evidence and incomplete and misleading allegations against plaintiff.

104. The defendant police officers purposely and maliciously misled the District Attorney's Office so that the District Attorney's Office would prosecute plaintiff for crimes he allegedly committed..

105. Importantly, the collateral objective the defendants had for ensuring plaintiff was prosecuted was to make a successful gun arrest and presumably get assigned to a favorable detail b their supervisors..

106. Based upon the false, misleading, and incomplete information provided to the District Attorney's Office by the defendant police officers and sworn to by the defendants in the criminal court complaint, defendants initiated a prosecution against plaintiff and legal process against plaintiff was commenced when plaintiff was arraigned in Kings County Criminal Court on September 20, 2012 and was falsely charged with several crimes.

107. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, abuse of process, or denial of fair trial.

108. As a result of defendant City of New York and the New York City Police Department's policy of fabricating allegations against an individual to justify the amount of force used during an arrest and (2) unlawfully stopping, questioning, frisking and searching individuals, without probable cause or reasonably articulable suspicion, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely engage in this misconduct and unlawful behavior, there is a pattern, policy, custom or practice of New York City Police Officers stopping, questioning, frisking and searching individuals without a factual basis supporting a legal reason to do so and/or fabricating allegations against individuals they arrest in order to justify the force used during the course of the arrest.

109. Some of the individually named police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, abuse of process and denial of the right to a fair trial against plaintiff

110. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, abuse of process, denial of a fair trial, and the use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

111. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 110 with the same force and effect as if more fully set forth at length herein.

112. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, searched, seized, unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted, subjected to abuse of process and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

113. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 112 with the same force and effect as if more fully set forth at length herein.

114. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

115. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

116. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

117. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

118. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

119. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 118 with the same force and effect as if more fully set forth at length herein.

120. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

121. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

122. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

123. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

124. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

125. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

126. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 125 with the same force and effect as if more fully set forth at length herein.

127. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

128. Defendants lacked probable cause to search plaintiff.

129. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

130. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

131. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

132. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

133. Plaintiff repeats and realleges paragraphs 1 through 131 as if fully set forth herein.

134. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

135. Defendants commenced and continued a criminal proceeding against plaintiff.

136. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

137. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

138. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

139. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

140. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial

141. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 140 with the same force and effect as if fully set forth herein.

142. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

143. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

144. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

145. In withholding/creating false evidence against plaintiff Bernard Miller, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

146. As a result of the foregoing, plaintiff Bernard Miller, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

147. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

148. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process

149. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 148 with the same force and effect as if fully set forth herein.

150. Defendants issued legal process to place plaintiff Bernard Miler under arrest.

151. Defendants arrested plaintiff Duquan Scott in order to obtain a collateral objective outside the legitimate ends of the legal process.

152. Defendants acted with intent to do harm to plaintiff Duquan Scott, without excuse or justification.

153. As a result of the foregoing, plaintiff Bernard Miller sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

154. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

155. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

Failure to Intervene

156. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 155 with the same force and effect as if more fully set forth at length herein.

157. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

158. Defendants failed to intervene to prevent the unlawful conduct described herein.

159. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

160. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

161. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

162. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 160 with the same force and effect as if more fully set forth at length herein.

163. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

TENTH CAUSE OF ACTION

Negligence

164. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 163 with the same force and effect as if more fully set forth at length herein.

165. Defendants owed a duty of care to plaintiff.

166. Defendants breached that duty of care by unlawfully stopping, questioning, frisking, falsely arresting, illegally searching, maliciously prosecuting, assaulting and battering plaintiff.

167. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

168. All of the foregoing occurred without any fault or provocation by plaintiff.

169. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

ELEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

170. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 168 with the same force and effect as if more fully set forth at length herein.

171. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to

plaintiff, Bernard Miller. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

172. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

173. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

TWELVTH CAUSE OF ACTION

Assault

174. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 173 with the same force and effect as if more fully set forth at length herein.

175. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

176. Defendants were at all times an agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

177. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

THIRTEENTH CAUSE OF ACTION

Battery

178. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 177 with the same force and effect as if more fully set forth at length herein.

179. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

180. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

181. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

FOURTEENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

182. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 181 with the same force and effect as if more fully set forth at length herein.

183. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

184. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, illegally stopping, questioning, searching, and arresting individuals without a specific, articulable factual basis supporting reasonable suspicion and/or probable cause that plaintiff committed a crime and fabricating allegations against an individual to justify the amount of force used during an arrest, as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to these issues.

185. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

186. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

187. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

188. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully stopped, questioned, searched and arrested.

189. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

190. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

191. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Duquan Scott demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
September 19, 2015

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
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ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
September 19, 2015

/s/

STUART E. JACOBS